

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: March 27, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER GRANTING JOINT MOTION TO FURTHER EXTEND SCHEDULING DEADLINES

This matter came on for consideration of the Joint Motion to Further Extend Scheduling Deadlines (“Motion”) (Dkt. 48). By orders dated April 23, 2025, June 23, 2025, July 23, 2025, November 18, 2025, and January 29, 2026, the scheduling order was previously extended to allow the parties time to complete review and production of the voluminous discovery propounded in this complex proceeding, to facilitate potential settlement discussions, and due to the sudden serious illness of Complainant’s counsel. (Dkt. 27, 34, 36, 40, 46.) For the reasons set forth below, the Motion is **GRANTED** and the scheduling order is extended as set forth herein. Absent exigent circumstances, no further extensions will be granted.

The parties seek a two-week extension of the current discovery and briefing deadlines on the ground that second rounds of written discovery were propounded that delayed scheduling the remaining depositions, and that scheduling of the last two depositions set for April 7 and 10 was delayed to accommodate counsels’ schedules and upcoming Easter holiday on April 5, 2026.

The parties have established that additional time is necessary to complete depositions in advance of briefing in a manner that accommodates counsels’ schedules and religious observance of Easter. I find that the parties have demonstrated good cause for extending the schedule by two weeks on the ground that extensive discovery has been required due to the complexity of the matter, the record demonstrates that the parties have worked diligently to complete discovery within established deadlines, and that it is necessary to accommodate the religious practices of all parties, counsel, and witnesses who observe Easter.

At the same time, all things must come to and end. Given the number of extensions of the schedule previously granted, no further extensions will be granted absent exigent circumstances.

Accordingly, I find that a two-week extension of the discovery and briefing schedule is reasonable under the circumstances despite that it will necessitate an extension of the deadline to issue an initial decision, which is currently scheduled for May 18, 2026. (Dkt. 41.) Good cause having been stated, it is hereby ordered that the Motion (Dkt. 48) is **GRANTED**. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

April 10, 2026	Complete depositions of fact witnesses
April 10, 2026	Complete expert depositions
April 10, 2026	Close of discovery
May 11, 2026	Complainant's initial brief, proposed findings of fact, and appendix
June 10, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 22, 2026	Complainant's reply and responses to proposed findings of fact

It is further **ORDERED** that absent exigent circumstances, no further extensions will be granted.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2026.03.27 10:45:22 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge